

File No.: EXP202202658

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by Ms. A.A.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated August 25, 2022, and based on the following

FACTS

FIRST: On August 25, 2022, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202202658, in which it was agreed to uphold for formal reasons the complaint filed by Ms. A.A.A. against the GENERAL DIRECTORATE OF TAXES OF THE GOVERNMENT OF EXTREMADURA.

SECOND: The resolution now being appealed was duly notified to the appellant on September 2, 2022, as evidenced by the acknowledgment of receipt in the file.

THIRD: The appellant has submitted on this date to this Spanish Agency for Data Protection a recourse for reconsideration, in which, after explaining in detail the different occasions on which she addressed the complained entity to request the rectified data related to the self-assessments of the sanitation fee, she concludes by stating that "(...) consequently, the Resolution of Ms. Director R/00804/2022, of August 25, which upholds the complaint filed on January 20, 2022 against the General Directorate of Taxes of the Government of Extremadura [EXP202202658], is null and void in accordance with Article 47.1.a) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, for violating the right of access and also to obtain truthful information, proceeding to urge the General Directorate of Taxes to provide access that must be satisfied by sending this party a copy of the rectified data of the affected self-assessment of the sanitation fee for the 2nd semester of 2019 submitted on January 13, 2020 or, failing that, to expressly and clearly inform that these data have not been rectified and that the communications to this party in writing dated September 25, 2020, as well as a copy of the data communicated with the self-assessment of the 2nd semester of 2021 submitted on January 18, 2022 and, if applicable, the rectified data of this by the submission of model 715 in June 2022.

For all these reasons, it is appropriate and therefore, I REQUEST:

That the recourse for reconsideration be deemed to have been filed in time and form challenging the Resolution of Ms. Director R/00804/2022, of August 25, which upholds the complaint filed on January 20, 2022 against the General Directorate of Taxes of the Government of Extremadura corresponding to file EXP202202658.

And in due course, after the necessary legal procedures, a favorable resolution of this recourse be issued declaring null and void the Resolution that upholds the complaint of January 20, 2022, and restoring the current legality, access to the requested sanitation fee data from December 14, 2021, and reiterated on March 21, 2022, be facilitated."

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this recourse in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Response to the allegations presented

Before entering into an analysis of the arguments put forward by the appellant for the filing of this recourse for reconsideration, it should be noted that this Agency lacks the competence to analyze issues related to the regional tax Sanitation Fee created by the Sanitation Fee Law 2/2012, of June 28,

on urgent measures in tax, financial, and gaming matters of the Autonomous Community of Extremadura.

This Agency cannot analyze whether the rectification requested by the appellant before the complained entity should be carried out or not. It can only assess whether a response has been expressly provided to the exercise of the right.

In this case, and taking into account the provisions in the previous paragraphs, the statements of the appellant have been examined, and it has been verified that the complained entity responded to her, albeit late, providing her with the data.

Regarding the appellant's request for the original data and the same rectified data, it should be noted that data protection regulations establish that data must be updated, so the data to be provided should be those that are recorded at the time of exercising the right of access.

III

Conclusion

Consequently, and given that the appellant does not provide new facts or legal arguments that allow for a reconsideration of the validity of the challenged resolution, it is appropriate to agree to its dismissal.

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IV

Late Resolution

Due to operational reasons of the administrative body, which are not attributable to the appellant, as of the date hereof, the mandatory pronouncement of this Agency regarding the present appeal has not been issued.

According to the provisions established in Article 24 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the effect of administrative silence in the procedures for challenging acts and provisions is dismissive.

Nevertheless, and despite the time elapsed, the Administration is obliged to issue an express resolution and to notify it in all procedures, regardless of their initiation form, as provided in Article 21.1 of the aforementioned LPACAP.

Therefore, it is appropriate to issue the resolution that concludes the procedure of the appeal for reconsideration filed.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by Ms. A.A.A. against the Resolution of this Spanish Agency for Data Protection issued on August 25, 2022, in file EXP202202658.

SECOND: TO NOTIFY this resolution to Ms. A.A.A.

In accordance with the provisions established in Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative pathway, an administrative contentious appeal may be filed within two months from the day following the notification of this act, as provided in Article 46.1 of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of the aforementioned legal text.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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